

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM05
HON. Judge Ebrahim Baytieh

Date: 05/20/2026

Court Room Rules and Notices

#	Case Name	Tentative
1	<u>Ho-Probate</u>	TENTATIVE RULING <u>Case: Ho-01501457 - Trust</u> TENTATIVE RULING MOTIONS TO COMPEL (ROAs 157 and 159) Stephen Ho, in <i>propria persona</i> (self-represented litigant), has filed a motion to compel production of accounting records (ROA 157) and a motion to compel inspection of property (ROA 159). There is no evidence before the court that Stephen Ho propounded discovery for production of documents or inspection of land or made any informal request for such information. Pursuant to Code of Civil Procedure section 2031.010, Stephen Ho may make demand for such discovery directly on the opposing party. Discovery is designed to be self-executing among the parties without the need for court intervention. (<i>Townsend v. Superior Court</i> (1998) 61 Cal. App. 4th 1431, 1434.) The court finds sanctions are warranted pursuant to Code of Civil Procedure section 2023.010(h) for making motions to compel without substantial justification. Nonetheless, the attorney fee declaration in opposition to these motions does not justify the time expended or the costs incurred. The court imposes reasonable sanctions in the amount of \$2,250 against Stephen Ho payable to the Law Office of Sandra Bonds Hickey within 30 days of notice of this ruling, extended for method of service, or on any later date as agreed by the parties in writing. Counsel for Respondent Bradley Ho is ordered to give notice of this ruling

2	Navarro-Trust	TENTATIVE RULING Case: <u>Navarro – Trust 01401457</u> DEMURRER (ROA 12) Respondent David Orlando Meza (“Respondent”) demurrers to the Petition for Instructions (ROA 2) filed by Petitioner Myrna Dominguez (“Petitioner”) on the ground that it is barred by the 120-day statute of limitations to contest a trust pursuant to Probate Code section 16061.8. This case involves the J.R. Navarro Living Trust dated 5/3/00 (“Trust”). The Trust was amended twice in 2001 and once in 2007. The Trust was Restated in 2017 and amended again in 2021. Petitioner is the Successor Trustee. On 7/31/25, Petitioner filed a Petition for Instructions in which she alleges that Respondent was the settlor’s caretaker when the 2017 Restatement and the 2021 Amendment were executed. Petitioner seeks an “instruction” as to whether she should distribute Trust assets pursuant to the 2007 Amendment or the 2017 Restatement and 2021 Amendment. The Petition further prays for a determination as to whether the 2017 Restatement and 2021 Amendment are valid and enforceable; for a determination as to whether Respondent is disqualified as a beneficiary pursuant to Probate Code section 21380; and a determination as to whether Respondent can overcome the presumption set forth in Probate Code section 21380. <u>Trust Contest</u> Petitioner argues that her Petition is not a trust contest. Based on the record presented, the court is not persuaded. The Petition clearly seeks a determination as to whether the distributions made to Respondent in the 2017 Restatement and the 2021 Amendment are valid or whether they were procured through undue influence by Respondent. That is a quintessential trust contest. Petitioner’s argument that she does not want to invalidate these instruments in their entirety is immaterial. Contesting the validity of a particular distribution in a trust instrument is still a trust contest. (“Direct Contest” means a contest that alleges the